

4 (citations omitted). The plaintiff’s § 1983 claims are against four Minnesota county attorneys in their “‘official capacity’ only.” *Id.* They seek “a declaration that § 211B.02 is unconstitutional and a permanent injunction against its enforcement.” *Id.*

On July 20, 2020,² the plaintiffs moved for a preliminary injunction to enjoin the county attorneys from enforcing Minn. Stat. § 211B.02 pending the entry of a final judgment. The county attorneys opposed the motion and submitted declarations in which they “testif[ied] . . . that they never have initiated civil or criminal proceedings for violations of § 211B.02, that they are ‘not currently investigating’ any such violations, and that they have ‘no personal intention’ to commence proceedings.” *Id.* at 13 (quoting county attorneys’ declarations).

After analyzing the *Dataphase*³ factors, the district court denied the plaintiffs’ preliminary-injunction motion. Although it concluded that the plaintiffs had Article III standing, it determined that the plaintiffs were not likely to succeed on the merits of their First Amendment claims because of their “inability to satisfy a prerequisite to their claims under *Ex parte Young*, 209 U.S. 123 (1908).” *Id.* at 10. In reaching its decision, the court observed that the *Ex parte Young* “exception [to Eleventh Amendment immunity] does not apply ‘when the defendant official has neither

²On September 30, 2019, the county attorneys moved to dismiss the plaintiffs’ complaint. The district court denied the motion, but it dismissed with prejudice the claims of plaintiffs Minnesota RFL Republican Farmer Labor Caucus, Bonn Clayton, and Michelle MacDonald based on their challenge to the first sentence of Minn. Stat. § 211B.02.

On November 27, 2019, the Minnesota Attorney General intervened in the case “for the limited purpose of defending the constitutionality of Minn. Stat. § 211B.02.” R. Doc. 30, at 1.

³*Dataphase Sys., Inc. v. C L Sys., Inc.*, 640 F.2d 109 (8th Cir. 1981) (en banc).

enforced nor threatened to enforce the statute challenged as unconstitutional.” *Id.* at 11 (quoting *281 Care Comm. v. Arneson (Care Committee II)*, 766 F.3d 774, 797 (8th Cir. 2014) (quoting *McNeilus Truck & Mfg., Inc. v. Ohio ex rel. Montgomery*, 226 F.3d 429, 438 (6th Cir. 2000))). “Under this standard, and based on [the county attorneys’] uncontested affidavits,” the district court held that the “[p]laintiffs have not shown that [the county attorneys] are ‘about to commence proceedings’ against them.” *Id.* at 13 (quoting *Ex parte Young*, 209 U.S. at 156). The court acknowledged that the county attorneys’ declarations “say only that they have ‘no present intention’ to prosecute” but concluded that their failure to “disavow[] all future prosecutions does not mean that they are ‘about to commence proceedings’ against the [p]laintiffs.” *Id.* (quoting *Ex Parte Young*, 209 U.S. at 156).

The court also determined that the plaintiffs failed to show irreparable harm. It cited “the absence of threatened, much less imminent, enforcement by [the county attorneys]”; the plaintiffs’ failure to “seek a preliminary injunction until almost one year” after filing their complaint; and the fact that “the harm [p]laintiffs identify as being attributable to [the county attorneys] seems slight—not irreparable—when one considers that Minn. Stat. § 211B.32 authorizes any person to file a complaint alleging a violation of § 211B.02.” *Id.* at 14–15. Furthermore, the court concluded that “[t]he final two *Dataphase* factors do not change things.” *Id.* at 15.

II. Discussion

On appeal, the plaintiffs argue that the district court abused its discretion in denying their preliminary-injunction motion. First, they challenge the district court’s determination that they are not likely to prevail on their First Amendment claims because the county attorneys are entitled to Eleventh Amendment immunity. Second, they argue that the district court erred in determining that they failed to prove irreparable harm. “As to the remaining preliminary injunction factors,” they assert that “the district court did not view the balance-of-harm factor as it would apply to First Amendment freedoms” and failed to consider that “the public interest favors

protecting core First Amendment freedoms.” Appellant’s Br. at 25–26 (quoting *Iowa Right to Life Comm., Inc. v. Williams*, 187 F.3d 963, 970 (8th Cir. 1999)).

We review for an abuse of discretion the district court’s denial of the plaintiffs’ preliminary-injunction motion. *See Phyllis Schlafly Revocable Tr. v. Cori*, 924 F.3d 1004, 1009 (8th Cir. 2019). “A district court abuses its discretion if it ‘rests its conclusion on clearly erroneous factual findings or erroneous legal conclusions.’” *Id.* (quoting *Barrett v. Claycomb*, 705 F.3d 315, 320 (8th Cir. 2013)). We review de novo a district court’s Eleventh Amendment immunity determination. *See Balogh v. Lombardi*, 816 F.3d 536, 541, 544 (8th Cir. 2016).⁴

“Generally, States are immune from suit under the terms of the Eleventh Amendment and the doctrine of sovereign immunity.” *Whole Woman’s Health v. Jackson*, 142 S. Ct. 522, 532 (2021). The Supreme Court has “recognized a narrow exception grounded in traditional equity practice—one that allows certain private parties to seek judicial orders in federal court preventing state executive officials from enforcing state laws that are contrary to federal law.” *Id.* (citing *Ex parte Young*, 209 U.S. at 159–60). “In determining whether this exception applies, a court conducts

⁴As an alternative ground for affirmance, the county attorneys assert that the plaintiffs lack Article III standing to challenge § 211B.02. “When faced with jurisdictional issues involving Eleventh Amendment immunity and Article III standing, the Court can decide which to address first.” *WildEarth Guardians v. Bidegain*, 555 F. App’x 815, 816 (10th Cir. 2014) (unpublished per curiam), *as clarified* (Mar. 7, 2014) (citing *Sinochem Int’l Co. v. Malay. Int’l Shipping Corp.*, 549 U.S. 422, 431 (2007) (“[A] federal court has leeway ‘to choose among threshold grounds for denying audience to a case on the merits.’” (quoting *Ruhrgas AG v. Marathon Oil Co.*, 526 U.S. 574, 585 (1999)))); *see also Sinochem*, 549 U.S. at 532 (holding that courts may dismiss a case on forum non conveniens grounds before considering jurisdiction). Because we find Eleventh Amendment immunity dispositive of the present appeal, we need only address it. *See Sinochem*, 549 U.S. at 431.